

MF 1-3

Courthouse Busselton

26 December 1876

Having in accordance with the provisions of Vic 28 No 2 having investigated all the circumstances connected with the stranding of the S.S. Georgette about 35 miles south of Cape Naturaliste on 1 December 1876 – and also certain charges preferred against John Godfrey, master of the said vessel, we find

That the Georgette commenced leaking in the afternoon rounding Cape Naturaliste on 30 November – but there is insufficient evidence to prove in what part of the ship the leak originated – and no evidence to prove the cause of such leak –

That the leak increased with great rapidity after midnight and that by 4am on December 1 the water in the ship was gaining so fast that there was no alternative but to run for the shore and that for the protection of the lives of those on board, the stranding of the Georgette was necessary.

And further we find on

Charge 1 – that there is no evidence to prove ‘hasty, violence and m loading at Bunbury’ or than any injury to the ship was caused thereby.

Charge 2 – that the Georgette boats were seaworthy when she left Fremantle

Charge 3 – that although the lifeboat was in a leaky state, Captain Godfrey, under all the circumstances, was justified in placing passengers therein as a precaution, and that the upsetting of the boat and loss of life thereupon was accidental, and in no way caused by the leaking of the baot.

Charge 4- that the Chief Officer did hold a local certificate of competency

Charge 5- that the ship’s pumps were

MF 4

We are of the opinion that Captain Godfrey was guilty of a grave error of judgement in not taking further steps to ascertain the condition of the ship at 8pm on November 30th, with a view to putting back, seeing the unusual nature of the report of the Chief Engineer with regard to the unsatisfactory working of the Bilge Pump and his suggestions that the Deck Pumps should be got ready for working –

That seeing the 1st Engineer saw the unusual quantity of water within the ship at 8pm on November 30th – he is guilty of neglect of duty in not having directly reported same to the Captain.

That seeding the 2nd Engineer was evidently aware of the increase of water during the final watch on 30 November...

MF 5

...we consider that he was guilty of neglect of duty in not having taken further steps to ascertain its cause.

That the 1st officer was guilty of his disobedience of orders in not steering the lifeboat astern when directed to do so by the Captain – loss of life resulting from such disobedience –

Whereupon we retain the certificates of the said John Godfrey Master, William Dundee Mate, William Sinclair 1st engineer, Joe Horrigan 2nd engineer pending decision of his excellency The Governor pending further proceedings.

Signed by judiciary

MF 6,7,8

Depositions on oath

1. That the said John Godfrey, master of and in charge of the S.S. Georgette, between the 12 and 24 November last year, did without regard for the safety of the ship and crew take in a large quantity of Jarrah Timber, hastily, violently and incautiously, thereby injuring the vessel and causing her to leak, resulting in the loss of the vessel and lives of passengers.
2. That he did proceed to sea with an insufficient number of boats, such boats not being seaworthy
3. For placing passengers in a leaky boat the upsetting of which caused the loss of several lives
4. For proceeding to sea, his chief officer not having a certificate of competency or service
5. That the ships pumps were damaged and not in working order

William Dundee being sworn saith

I was chief officer at the time of her loss?. I have a certificate of competency from the Local Board. My certificate was lost in the Georgette. I have been eight years at sea. I have never before been in the capacity of chief officer. I have been a second officer aboard the s..... .. Joined the Georgette on 28 Nov back in Fremantle. John Godfrey was master. His loading was all complete when I joined her. I believe her cargo contained a quantity of timber, but I do not know how much timber she had on board. The hatches were opened when I joined. The cargo seemed to be stowed in the square of the hatch. She was full to within inches of the Beams. It was sawn timber could not see the lengths of it.. The Georgette sailed 29 November, the day after I joined. I did not notice what pumps she had in there was not time. She had a lifeboat, gig and pinnace. I did not see in them at all. My time was occupied taking in the luggage and the passengers. We sailed on the 29 bound for Adelaide calling in at Bunbury. I do not know

MF 9, 10

...what was her draft of water, but I think it was about 10 feet aft. She was two or three feet by the stern. I do not know whether the ship was examined by the officer for carrying only the provisions of the Passengers also. She was examined and searched by the Water Police. The crew and passengers all told numbered 72. The Georgette arrived at Bunbury on the 30th. Stopped there two hours and proceeded to the Vasse. The hatches were taken off at Bunbury for the purpose of taking the luggage out of the hatch – we stopped at the Vasse for about an hour or so. To the best of my memory we rounded the Naturaliste about 1pm. The wind was from the northward or westward – not much sea xxxxxing – we had the fore raft sails set – I don't remember the course she was steering – I had never been along that coast before – the land was on the front side - she was on the starboard tack, close hauled to the best of our belief – at one pm there was land on the port side and astern – we were running along the land – about six miles distant – I was in charge till 4pm – Cape Naturaliste was then bearing E W distance about 18 miles. She was at that time still steaming along the land. I don't recollect which tack she was on.

I again went on watch at 6pm. I cannot recall which course she was steering, toward the land. She was on a starboard tack, under five raft sails. There was ...

MF 11, 12

...a fresh breeze, light sea, and the ship not labouring much. She was going about five knots under steam and sail. We went about at 7.30. I think the land was six or seven miles distance. The log book is made up to 9.30 November 30th. I cannot say whether the copy produced from the log is a current copy – and therefore I cannot say whether the ship was steering S by W. At 7.30 when the ship tacked the wind was from the southward or westward. I took charge again at 12 o'clock (midnight). She was standing off the land on port tack, blowing fresh moderate sea, not labouring.

The first time I knew she was taking on water was about 3am on the 1st December. I had not before been told that she was taking water. About 2am, 2nd Engineer Horrigan came to me and asked me to go below. He wanted me to check for some hole in the bulk head between the Engine Room and after hold or Lazarette. Could not get to it from the stoke hole. I don't know why he wanted that hole in bulk head c..... went into the Lazarette...there were 18 inches to 2 feet of water in the bottom. I was surprised at finding that depth of water there. I called the Captain when I came up from the Lazarette having been there about half an hour. That was a about 2.20. We have been shifting some of the stores to see if we could get at the hole within the bulkhead. The captain had left orders for me to call him at 2. It was 2.20 when I did call him. I reported to him that there was water in the Lazarette. I cannot recollect whether I told the captain what depth of water there was – the captain...

MF 13-14

...came to me and asked me to go below. He wanted me to see if he could clear some hole in the bulk head between the engine room and afterhold – or Lazarette – could not get at it from the stone bale out. I didn't know why he wanted that hole in bulk head cleared. We went out into the Lazarette – there were 18 inches to 2 feet of water in the bottom. I was surprised at seeing that

depth of water there. I called the Captain when I came up from the Lazarette having been there about half an hour – that was about 2.20 – we had been shifting some of the things to see if we could get at the hole within the bulkhead. The captain had left orders for me to call him at 2. It was 2.20 when I did call him. I reported to him that there was water in the Lazarette. I cannot recollect whether I told the captain what depth of water there was – the captain jumped up at once. I did not know that a leak had broken out till 3am. It had not been reported to me. I saw it myself after calling the Captain. I took two men into the hold to clear away the ballast – the water had not then increased. I got down to the end of the pipe of the pump after it stopped with black xxx on clay. It was all over the bottom part of the ship – dirt xxx on ballast – I went out to the engine room for a saw to cut the pipe when I got down the water gained I had to leave it without cutting the pipe. It was close on four o'clock then. From the best of my belief the water was coming from the engine room through the hole in the bulkhead we wanted to get clear. The object was to close the valve –

She had three pumps independent of the Engine Room pump – over on the poop close to the mxxxxxxx and one on each side with xxxx under the Bridge. We tried the pump on the poop between 6 and 8pm on the 30th - it would not work at all – the Captain and the second mate were trying the pump when I came up and I lent them a hand – we then drew the boxes and cleaned them – it worked well on deck but brought no water up – and then I supposed there was no water in the hold – I don't know when that pump was tried again – and do not think it was during my watch from 12 to 4am. It was when I went down to clear away the ballast that xxx pipe of pump and found it stopped.

At 4am I called all hands to bale out water from the Lazarette – by order of the Captain. I heard it reported that there was some in the Engine Room – that was between four and five. There...

MF 15-16

...was between 3-4 feet of water in the Lazarette when we commenced bailing. The screw shaft was not covered. The water gained on us fast. I then broke away the pump casing and cut the pipe and when the water rose to the end of the pipe the pump was set to work. We then gained on the water – and when I left the Lazarette which was about 9 o'clock there was about 4 feet of water. I put it down to the leak being in the engine room – the water had been reduced about 4 or 5 inches – I was then called on deck by the Captain to go into the lifeboat – the engines had stopped some time after I had left off baling – She was under Canvas heading towards the Land under foresail, topsail, main trysail – based upon standards tack- fresh wind – light xxx sea – the lifeboat was hanging astern – the Pinnacle hanging on the davits – the lifeboat was full of Passengers. One or two more got in – the ship was moving very slow thro' the water – she had steerage way – all was quite the officers were cool and collected. The lifeboat was hauled up alongside on the portside for me to get in – there were I believe 22 men, women and children in the boat when I got in. There was about 2 feet of water in the boat when I got in – I made no remark to the Captain – many in the boat were baling her with buckets. I slacked her astern – while doing so the boat sheared toward the vessel and was stove by coming in contact with the Cxxxx and she capsized – some in the boat as she capsized got hold of the ship's sail and onboard – the ship's gig was hanging astern with W. Dempster in her. I got hold of the sail and got on board and pulled up one...

MF 17-18

...of the passengers. W. Dempster jumped overboard and got into the Gig. They managed to get four women and four children into the boat. The second mate and cabin boy jumped overboard, but missing the Gig, got into the Lifeboat. I hauled up the gig and jumped into her from the stern. Cast her off – picked the two men off the lifeboat and made for the shore with three oars – I calculated we were 25 miles from land – when I jumped into the Gig there were no bodies floating in the water – there were only the two men in the bottom of the lifeboat – we made an attempt to get up to the ship again but could not reach her from the heavy sea. I believe the Topsail was lowered, but she was not hove to. I don't know whether the foresail was hauled up – the Captain was giving all orders – the Pinnacle was now lowered, and after the capsize of the lifeboat, could not have been lowered quick enough to rescue any of the people in the water – the ship was going quicker than the gig – every effort was made to rescue the people in the water – we lost sight of the ship about four o'clock – and reached the shore about a mile south of Cape Naturaliste about nine o'clock – we beached the boat and all landed in safety – 14 souls in all. We never expected to reach the land, expecting she would be swamped. I do consider the Gig a fit boat for a passenger steamer to carry. She was 25 to 27 feet long – she was seemingly a very old boat – she must have been leaky but may have taken some water over the gunwale...

MF 19-20

The patch on the Gig did not render her unfit to carry passengers – the patches were lead or tin – on the Bilge – apparently on places where she had been stove. The Georgette did not have sufficient boat accommodation for the number of passengers on board. The Pinnacle was about the same size as the Life Boat but would have carried about 20 people.

The Passengers luggage was stored between the combings of the hatches – on the timber which was within a few inches of the deck beams – I had nothing whatever to do with the navigation of the vessel – on board the Helena knew as officer watch the course she was steering – I don't remember having stated on a former occasion that I knew of the water being within the engine room when asked by the 2nd engineer to clear the hole in bulkhead. I do not know if there was any means of sounding the bell in the Georgette. She was not bumping along the jetty when lying alongside when I was on board.

It never was reported to me that the ship was leaking.

Xexam by Captain Godfrey

I cannot swear how the xxx was when she rounded the Naturaliste at one o'clock – but it was I believe as I stated before – west and north.

I do not recollect you telling me to pump ship at 8pm on 30th.

I had orders from 2nd mate to call you at 2am.

You came on deck as soon as I called you and you asked me no questions at all that I can remember...

MF 21-22

...I do not remember you asking me if 2nd mate had pumped ship at 12.

I do not recollect your coming into the Lazarette at all.

I did at 4am go into the Alley Store where my berth is with my coat over my arm.

The lifeboat was aloft the main rigging when I got into her.

You told me to make for the land patch on the beach and keep clear of the reefs.

I do not recollect your telling me to hang on with the lifeboat as long as the ship xxx prepared to cut the painter.

The painter was fast round the thwart.

I had it in my hand, not through the ring bolt.

You might have but I believe you disobeyed my order to slack the boat astern

I will swear there were two feet of water – fore and aft in the lifeboat when I got into her.

When I got in the lifeboat I did not think the ship very safe –

I cannot swear whether the topsail was aback –

Re-examined by court

I did not think the lifeboat would float twenty minutes and thought it about six of one half dozen of the other with the ship.

I would have slacked the boat astern, even if orders had been given.

There was no reason to cause a leak and that is why I supposed the water came from the engine room. I put it down to a leak without xxx of the ship. The leak might have been in the fore hold. I have no specific reasons for supposing the leak was in the engine room, but ...

MF 23, 24

...thought it was the most likely place – on account of the presence of the machinery. The timber was heavier than the machinery but cxxxx more xxxxx.

I still xxxct that I didn't know there was water in the engine room before I went down into the Lazarette.

I have served on a steamer before.

William Dundee

John Dewar being sworth saith:

I was second officer on board the Georgette – I hold no certificate and have never passed any examination. I have been 14 years at sea. I have been 21 months on board the Georgette – she went from Fremantle to Bunbury to take in timber – arrived there on 12 Nov – we were delayed by bad weather – we were delayed by bad weather and didn't begin loading till 17th November – commenced with a xxxx hold and took in first square logs – they were taken down the hatchway but cannot say what length they were – I acted as stevedore – the logs would like flat on the bottom – after the first two or three – after the first two or three lighter loads – the timber was of xxx sizes -it - was carefully and cautiously stowed – quite solid form? There was no difficulty in getting the logs down and none of the logs slipped out of the slings or went xxx xxx xxx – no...

MF 25

...no injury could have been caused by lowering the timber into the hold. I was checked by the engineer for heaving up with the donkey engine too quickly – I not, as far as I know, checked for lowering away too quick into the hold. The Georgette was lined about halfway up the hold – there was no protection to the plating above the Lining – Damage was xxx in the bottom – there was about 16 inches between the ship's bottom and the lining – bits of timber were placed between the iron framing and the cargo – no where fore and aft was the cargo touching the framing – the cargo was quite solid, could not shift – there was a pipe cased in, running along the forehold but I don't know where it came from or went to- I laid short boards from the casing to the helm – and then the timber was stowed and in my opinion the casing was totally protected.

The after xxx of the logs were a few inches from the bulkheads – the ship was at times rolling about very much and some of the logs did strike the framing – not with sufficient force I believe to do any injury – not with sufficient force to start a rivet? When loading was completed the timber was within a few inches of the deck beams – I don't know whether there was a hole and valve in the bottom of the bulk head between engine room and the helm but there was a hole leading from the coal bunker about five feet from the bottom of the ship.

I was in the hold most of the time and do not believe there was any injury done to the ship while in the process of loading. I swear that to my knowledge there was none –

I recollect the pipe spoken of above was for filling a tank in the fore part of ship

When loaded we proceeded to Fremantle..

MF 26-28

The after sxxxxs of the logs were a few inches from the bulkheads. The ship was at times rolling about very much and some of the logs did strike the framing. Not with any sufficient force I consider to do any injury – I think not sufficient force to start a rivet? – when loading was completed the timber was within inches of the Deck beams. I do not know whether there was a hole and valve at the bottom of the bulk head between the hold and Engine Room near the xxxx but there was a hole leading to the coal bunker about five feet from the bottom of the ship.

I was within the hold most of the time and I believe there was no injury done to the ship during the process of loading. I swear to my knowledge that there was none.

The Pipe spoken of above was for filling a Tank in the fore part of the ship. When loaded we proceeded to Fremantle. She was not injured while lying alongside the jetty at Fremantle. Sailed from Fremantle for Adelaide 29th November. Called in at Bunbury on the morning of the 30th. Fine weather – proceeded to Vasse and left Vasse for Adelaide at 9.30am. I do not know what her draft of water was - I think we was drawing 12 foot aft - she was in good trim, not very dxxx. I have xxx her decks before – I took watch with first officer – was a watch from 4pm to 6 on the 30th. She was on the port tack, close on the xxxxx heading about xx by xx. It was blowing stiff with good xxx after and we were obliged to keep fore raft sail and tacked at 5pm. Headed in shore steering about South. The Captain did not during my watch come to me about the Deck pump. He did come to speak to me about it about 8pm. It was then my watch below - He directed me to try the deck Pumps- I wxxx with him and the after xxxx – it worked well but brought up no water - I don't know what object the Captain had in ordering me to try the pump – I think it was in consequence of something the Chief Engineer said to him – I used to try the pumps about once a week – about 8 days before I had tried xxx xxx xxx xxx with it – knew it to be choked by ballast? – she generally made no water. The stone ballast with Lazarette was always in her – was ordered by the Captain to try the pumps at 10pm and then again at seven bells. It was unusual that such orders should be given – I did try at 10pm and concluded that there was no water in her. At 11.30 tried again and still the Pump fetched no water – Captain Godfrey was on the deck at the time – I did not report to him that I could not fetch water.

29-32

Between eight and ten thinking the pump was choked, took two hands below to shift the stores, to get at bottom of the Pump. Found the one choked with clay or something like grease or tallow from the Engine rooms but not water enough from this Pump to start. Tried pump again and it was all right. Tho' I thought it unusual the Captain ordering me to start the Pump. I kept it to myself and made no mention of it to anybody – neither of the Engineers spoke to me during my watch 8 to 12 nor any of the Passengers. When I gave up my watch to first officers at 12 o'clock I told him by the Captain's orders to try the pumps at two o'clock. It was blowing hard and a heavy sea running but was trying not to cause anxiety.

Court reassembled at 10 o'clock 22 December 1876

John Dewar being sworn saith

It was about 10pm on 30th November that I went into Lazarette, and found there was not sufficient water for pump to fetch. At 12 I went below and was not on deck again until 4am when I was called by the mate – within five minutes I was instructed by the Captain to call all hands – the mate was going below, the Captain ordered him to stop on deck and that the ship had sprung a leak. I went to the Pump on the poop? All hands were directed by the Captain to go down into the Lazarette with Buckets for baling – all the male passengers were called up – There is a Pump in the galley on the Port side, under the Bridge. It leads from the foreward side of the bulkhead between fore hold and Engine room compartment. I tried that pump and it sucked rusty water and was bringing rusty water when I left it. It did not bring up a xxx body of water – it was ordinary bilge water. That was at 4.15. I do not think that Pump was kept at work and the handle was then shifted to the after Pump – that pump was kept working xxx that the baling from the Lazarette was going on and also baling from the Engine room – I am certain it was soon after I came on deck that the after Pump was being worked and kept working. I don't know what depth of water was in the Engine room at that time- but the fires were out and the Engineers were working – there were no sails set - they were set at 4.30 and the ship headed towards the land. I do know know where the water came from. Ordered to c.... away the boats. The water was then xxx with the xxxs. The topsail and foresail were set, and the ship before the wind. I did not go into the Lazarette and cannot tell what

MF 32-34

water there was. The ship had three boats two boats in chxxx on the Bridge, the other the gig in the main hatch. The gxxxx and hxxxx were of the cxxxx and description and ready for use. I swung out the lifeboat .xxx on the weather starboard side – and then swung out the Pinnace on the port side. I then put provisions and spirits into the boats. I then launched the lifeboats with considerable difficulty from the ship's rolling. I think the mast have been injured by bumping against the ship's side. Launch starboard lee side. Two hands were lowered in her – she commenced to leak as soon as she touched the water. Taken round to the lee side. The Captain who gave all the orders, ordered the women and children into the lifeboat. I don't know the number of passengers and boats on board the Georgette - or the number that went into the lifeboat – I considered the boat safe for the number in her. While the gig was hanging at the side the stern bolt drew with tackle came unhooked. Her bow fell into the water and she swung round and the cable cut away the after tackle the boat dropped down with the Dempsters in her – I saw the lifeboat hauled up alongside – there was also a foot of water in her – some more females got in by Captain's orders – also the Mate. There was no rush of passengers towards her all was orderly – I considered her at that time perfectly seaworthy – the mate stood in the bow of the boat. The Captain gave orders for the boat to be dropped astern – there was a lot of slack line in the boat – she was just abreast of the main rigging – before she dropped astern she sheared in towards the ship – the boat bumped heavily against the ship's side and turned right over, all the people were reaching to the side to try to get hold of the ship – the ship was going about two knots or more. The lanyard was immediately blocked, but the foresail not hauled up. The gig was hanging astern with W. Dempster in her. The cabin boy, J. Dempster and myself jumped overboard. J. Dempster got into the gig, also a sailor from the lifeboat and succeeded in getting some of the floating people into the gig. Myself & cabin boy xxxxx the boat towing astern and got into the lifeboat. We did not xxx and xxx the Pinnace would have taken xxxx for baling the ship. I don't think any more lives would have been saved had we

attempted to lower the Pinnacle. I and the cabin boy were picked off the lifeboat by the gig. – about a mile from the ship. The boat was seaworthy when I got into her – with myself there were 14 in her. She may have held four more – we attempted to reach the ship but failed in consequence of the rough seas and her going quicker than we could – the sails having been filled again – we in the gig eventually reached the land safely. The lifeboat was a good boat in seaworthy condition – the Pinnacle and the gigfor a Passenger steamer. We had all the boats in the water when at Dongara last – about two or three weeks before.

I knew nothing of the leak until I came on deck at 4am

MF 35, 36 37

Captain ordered me to call all hands crossly? By Captain Godfrey. Many times the Engineers have chided me for driving the donkey engine too fast. At 4am on the 30th I think the Naturaliste was 10 miles distant.

At 7.30you asked me to try the Pump gear. You xxx a hand of it. The pump sucked.

At 4pm on the 1st you were on the Bridge. The mate came along with his money ratchet on his arm, making his way to his room.

You ordered me to xxx xxx of Pump in alley way. The Pump sucked out little water. It leads from Fore Hold.

At 4.30 you ordered two hands aloft to loose sail and then ordered me to get the boats out and make ready with balers. Two oars were xxxxx up and down the ship's sides for xxx. The baling piece was below the water. We waited for a smooth xxxxx to lower the boat.

You ushered first the females into the boat until you saw whether the ship was likely to go down. The mate looked perplexed when ordered to go into the boat and I asked again to let me go. I didn't then think there would be any danger in going into the boat. She had a goodabove water – when the water got into the boat he stood in the bow and he did not order the passengers into broken places.

You stood at the gangway handing people into the boat. You ordered the mate to cast away the boat but he did not do it.

The first woman that was pulled on board was at the fore front of the main rigging. The mate did not answer when you called out, 'slack away, slack away'.

I cannot remember whether you were xxx to the helm.

When you told me to jump overboard the poop deck was about 2 feet above the level of the water. I did not think that it would float an hour and a half – anyhow I thought she would reach the land.

Without steam the Georgette could not xxxxx smooth waters.

You told me in a quiet way that the ship had sprung a leak and no Captain could have acted better...by the Court

Xxx Abbott was Chief Officer when we landed at Bunbury. He had only been about a fortnight. He left voluntarily to take charge of his own vessel. I have frequently loaded timber on the Georgette at Lockview at Bunbury and sleepers from Rockingham. The last load from Bunbury was in my opinion a pretty good lot.

I don't think that if the Foresail had been braced xx well aback and the main topsail braced up and the staysail sheet hauled to windward that the Georgette would have xxx off and made a lee side from the lifeboat.

When, between 8 and 10 on the 30th I went into Lazarette to examine Rose of the

MF 38-39

...of the pump, it was only partially choked with the xxxxxxxxx xxxxxxxxxx. The pump would have brought up water, had there been any.

I don't know whether there was any xxxx from the engine room to the pump xxxx Lazarette. At my request the second engineer went with me and pronounced the pump clear.

To get to the Lazarette I lifted the hatch under Cabin Table – I know of no other way to get there - it always took two hands to lift the hatch. I don't think the lifeboat being lowered was injured enough to render her unseaworthy.

John Dewar

William Sinclair sworn in saith

I was Chief Engineer of the Georgette. I hold first chief's certificate. I was about fourteen months aboard the Georgette – the last eight months as chief engineer. The engines were compound, surface condensing, 55 nominal horse power. One between main boiler in the middle of the ship – furnace facing forward. There was a pxxxxx on the starboard side between the bunker and the boiler – a bunker, without pxxxxx on the portside. The donkey engine was in the foremost part of the engine room on port side – the Georgette had a bilge pump worked by and connected with main engine – The sea cock for running the boiler up, passes thro the ship bottom below the stoke hole plate on the port side. Opening the cock, the water could be raised within boiler to the level of the sea outside. NO water could therefore come thro' that cock into the bilge of ship.

The injection also operated thro' the

MF 39-41

...ship's bottom further aft in the engine room – and no water could come thro' the orifice into the bilge – unless the Pipe were fractured – there was a third sea cock in connection with the donkey engine for pumping water onto the deck or into the boiler. No water could enter the Bilge of the ship through that opening unless the pipe were fractured – and any leak through the valve chest would be noticed in the engine room. There was also a fourth small opening with a cock immediately below the stoke hole plate – which was used with a hose, which was screwed onto the mouth of the cock.

The boiler and machinery were in average condition and worked with 40 to 53 steam – after loading at Bunbury – when at Careening Bay, examined the Bilge Pump. In consequence there being only one suction pump for the donkey and bilge pump. It was xxx working both pumps at the same time.

In connection with the circulating pump there was a bilge injection – we seldom used it – but we did during the night of the 30th for about 1.30 – after that the engine stopped.

The Georgette loaded with timber at Bunbury. The steam winch was used for hoisting in the timber, which was passed down the main hatch. I had gone to check the hand the steam winch for using it too early but only for fear of his injuring it and no thought of injury being caused to the ship by being too hasty in lowering away. There was very heavy timber taken in, but I did not notice how the timber was lowered into the hold – I am not aware that any injury was caused to the ship by taking the timber into the hold, but I think it quite possible that injury may have been done to the frames of the ship. She got several severe shocks and jars but I don't think it could be avoided because she was rolling about a great deal.

There was a bulk head between the stoke hole for hold – and a cock xxxpermitting the passage of water between the two compartments. The cock was always open and we had accepted from the stoke hole ...

42, 43

...cannot swear that the hole leading to the cxxxx xxxx was in the bulk head, but no water could pass from one compartment to another if the cock was closed. It was close to the hxxxxx.

All in my department was working well and in order when we rounded Cape Naturaliste on afternoon of November 30th with the exception of slight trouble with the bilge pump, in consequence of dirt from the bilge having got in. I kept watch with Joe HOrrigan the 2nd engineer – there were three stokers, one on watch at a time.

I reported to the Captain between 7 and 8pm that the bilge pump was giving some trouble and that it would be well to get the deck pumps in working order. Did this in consequence of the ship making a little more than usual – noticed this about 4 or 5pm. Did not think it serious – I think I did, but cannot swear that I told that cabin boy that she was making more water than usual - I think there was between two and three feet water in engine room when I spoke to the Captain – the stoke hole

plates were about three feet above the bilge within the stoke hole – and engine room platform about four or five feet above the bilge. The water is generally close up to the stoke hole plates when she is rolling about – did not think it necessary, up to the time I spoke to the Captain, about the bilge pump not working well – to use the donkey engine – at 8pm when second engineer came on watch I ordered him to go down aft and see that the rose of the deck pump was clear, but could not examine it thoroughly in consequence of the stone ballast – I was not the slightest bit uneasy, but only took these measures as necessary precautions – under ordinary circumstances the donkey engine might have kept her clear of water but as she was making a little more than usual, I...

MF 44-45

...don't think the donkey xxx would have kept her clear.

I was on watch from 2 to 8pm and the little water she was making caused me no concern – I was called up about 12 o'clock – after I turned in at 8.30 to 9pm. I never left my room till I was called. Afxxxxx came by order of 2nd engineer – I was wanted below. I went immediately as soon as I put my clothes on - I was asleep when called. The 2nd engineer was in the engine room. The engines were working as usual with the exception of slight xxxxx vacuum in the condenser. The bilge pump was still troublesome, throwing water occasionally. There was no water on the stoke hole plates. I had ordered the 2nd engineer to call me if the water increased, and I found it had increased a little – I think five to six inches – and felt a little uneasy – but thinking we could better keep her clear from the engine room than they could from the deck did not close the cock for use only in bulk head.

At this time I formed the idea that the leak must be in the fore part of the ship. There was a sluice valve in the bulk head aft of the engine room – there was xxx xxx from the engine room – it was closed until I opened it about 1pm. I opened it to let the water run aft so that the deck pump would be of service- it was about 3o r 4am I think when the water came over the stoke hole plates. I think it was about 2am I reported to the captain that the ship was making more water – before this they had been trying to get the deck pump to work – I never left the eingine room till the engines stopped about 4.30 to 5am – I think the water was gradually gaining till about 2am and that after that it increased much more rapidly – the sea cocks were all right at 8pm – I did not look to them when I came on watch at 12 midnight – nor at any time after 8pm.

The balers did not at any time gain on the water in the engine room – and...

MF 46-47

...still thinking the water came from the forehold, I left the cock in the bulkhead open – this cock would admit in more water – than could have been pumped out by the bilge pump and baling I considered, if the leak had been forward, and if the forward compartment had been allowed to fill that the ship would have gone down head forward.

As soon as engines stopped I told the captain we could do no more good than that. I could not find the leak in the engine room and that it must be in the fore hold – I am quite satisfied no leak had taken place in the engine room – it is next to impossible anything could be wrong with sea cocks. The water was over the lower platform in the engine room by the time the engine stopped. The water increased much more rapidly after the engine stopped.

Xexam by Captain Godfrey

It was about break of day when you asked me to go down into the Lazarette. I had not seen you before that, after I was called at 12 o'clock.

I was on deck a minute or two after the boat capsized.

You asked me to take the wheel – you let go the lea braces – the ship was settling down rapidly – didn't think it was safe to keep her long have to...

By the court

The 2nd engineer remained with her in the engine room until 12 o'clock. And never left till the engines stopped – with the exception of captain going to the Lazarette to see if pump was right –

With the exception of examining the bilge pump there were no repairs going on in the engine room after 12 o'clock when I went on watch.

I had no conversation with W Connor after leaving the Vasse as to the state or condition of the Vessel, nor at any time after leaving Fremantle.

After the engines had stopped...

MF 48,49

...after daylight I did put in at Calgardup Bay in the Pinnace. It contained more clothes. The engineer...might be out of the engine room for a few minutes without ever leaving a stoker in charge.

I cannot form any opinion how or where the leak arose...one of the patches which had been made at Fremantle had given away – I believe the patches were forward – between 8pm and 4am the sea had considerably xxxxx. She was deeper than I had ever seen her before and did not labour or xxxx in a way that I would suppose should cause her to spring a leak – I think something must have given way and it is possible that the ship might have seen an injury at Bunbury and that such injury would not show, till she began to labour and strain...

Joseph Horrigan being sworn saith

I am 2nd engineer on board the Georgette and hold a second cxxx certificate from board of S.S. cxxxx. I was about seven months engineer on Georgette – I went on watch at 8pm on 30 November – relieving the chief engineer – I cannot recollect whether he told me she was making water – I could see there was a little more than usual in the bilges – I remarked to the chief engineer – I asked what was the matter – and whether the bilge pumps were still troublesome – from what he told me I opened the sluice valve within after bulk head – about 8pm the second officer came to me to go into the Lazarette to look at the rose of the pump – I should have said that in consequence of what chief engineer told me I went after to examine pump – I did not open the sluice valve but cannot recollect whether it was at 8 or 12.

The rose of the deck pump was clear and I returned to engine room. I called Chief Engineer about 12 and sent for him

I will not swear that I did not leave ...

MF 50-51

...the engine room between 8 and 12 – but do not think I did further than go to top of ladder. I did not between 8 and 12 take any particular notice of the sea cock – it did not strike me that the slight increase of water might arise from the sea cocks – no passenger remarked to me in the engine room that evening that there was more water in the bilge than usual. I will swear that no passenger did make such remark that night – that is after 8pm. Before that Mr Geddes did – I did not think that the extra water was of slightest consequence.

The bilge pump was troublesome – I suppose from wear and tear – and also from being partially choked – sent for the chief engineer because the water was increasing in the bilge pump not working well. I did not at that time imagine that the increase in water arose from a leak – once between 8 and 12 I increased the flow of water on the forward crank – and so this cause, and the

...and the bad working of the bilge pump I attributed the increase of water. I decidedly at that time did not believe there was a leak. I sent for the chief engineer because I could not manage the engines and attend to the bilge pump which was working badly. He came almost directly – I reported to him that the bilge pump was very troublesome, working occasionally and then stopping – I made no remark then about the increase in water. There has been no perceptible increase in the usual quantity of the water in the bilge, until I let the water out the fore crank – the ship was labouring – not heavily – but more heavily than at 8pm. I remained in the engine room with chief engineer until about 2am – I simply told the chief engineer the water was gaining – and I came to the conclusion before leaving that the ship was leaking. I did not form the slightest idea where the leak was. Baling had not commenced when I left. ...

MF 52

...the engine room between 8 and 12pm the chief officer did not ask me to look at the hole in the after bulk head – I never went to my room at all after I called up the chief engineer – it was by his order I went into the Lazarette to examine the deck pump which I had previously examined about 8pm. I returned to the engine room. And remained there until I went to change my clothes which I got wet when examining the pump in the Lazarette. It was between two and four. I swear that that I was not in my room between 10pm and when I went to shift between 2 and 4. It was no use using the donkey and bilge pumps together – we have tried it before.

There were no repairs to the engine during the evening or night, beyond drawing the valve of the bilge pump. It would require no force or hammering – there were no repairs requiring hammering – there was no hammering at all. There was no sudden stoppage of the screw.

There was a cock in the fore hold between the fore hold and engine room. 4 in diameter about I think. I do not know if it was shut or open.

MF Pages 53, 54, 55

Joseph Horrigan, 2nd Engineer

It must have been about 4.30 when the water first came over the stoke hole plates. The Plates are about 2 feet in width more above the Bilge mid ships. There would usually be about 2 feet water within the Engine Room. The Engines stopped between 5 or 6 – broad daylight – but I cannot say whether the sun was up. There were people baling within stoke hole previous to the fire being extinguished. I did not take notice whether they gxxxied out the water . I don't know whether the after deck pump was working or not. There was about 4 feet of water in Engine room when I left it. I had an idea that the water came from forward.

I was on board while the Georgette was loading at Bunbury. I saw that xxx one of the logs when going into the hold, strike one of the frames close up to the deck on starboard side – I think before the foremast – it was a heavy blow, I think enough to xxx the frames and rivets – I did not mention this to anyone. It escaped from my memory until water was coming into the ship. I now believe the ship was injured by that blow – the Captain was not present at the time – Mr Abbott was Chief Officer.

After 2am on December 1, the water xxxxx very rapidly, much faster than drained through the cock in the bulk head. The bulk head xxxxxs have been water tight. If the water had been running into the fore hold as fast as it was into the Engine Room, the ship would have gone by the head. She was all the time by the stern and didn't go down xxxx by the head.

The sluice valve within after bulk head was about five inches diameter. It was not possible the sea cocks could have been damaged.

Court adjourned 6.40pm. 22.12.76

The Court reassembled at 10 the 23 December 1876

Joseph Horrigan, Chief Engineer being resworn saith:

I knew of the Galley Pump but did not know where it led from. I saw it tried twice the night of 30th November. I mean that I saw people about the pump preparing to work it – I do not know whether it fetched water or not – I cannot say whether it was before or after midnight. It was, and is still my opinion that the water was coming into the ship in no parts other than the fore hold. In the early part of the night I didn't suppose that the ship was leaking, but between 12 and 3 the water in the engine room sxxxxxxed so much more rapidly that I felt convinced the ship was leaking. When we left Fremantle, the machinery was in pretty good order, and sufficiently good in my opinion to take the ship to Adelaide safely. Boiler and condenser and txxxx were working txxx plate cracked

56-57

...in several places and there was a frequent loss of vacuum after we left the Vasse arising I suppose from fxxxxxx of the ship's bottom. The circulating pump was practically xxxxx from forcing water into the condenser and to overboard.

Cross examination by Captain Godfrey

I am standing in the alley way when the log which struck the Framing of the ship was taken in. It struck about a foot below the deck. I made no report about it to you, nor to the mate.

I cannot swear that the 2nd mate was there in the hold, but I think he was.

I didn't think the guy prevented the log from striking the frame..

I did not go down to look at it. I thought at the time it would have done no good. It afterwards went out of my head.

I was on deck when the women were put into the lifeboat – I had the end of the painter round the after Davits –

I saw the mate in the bow of the lifeboat. You ordered him to slack away the painter – I think he had it in his hand –

I asked the mate if I should let go. You took a turn of the painter and shouted let go.

I lent you a hand to haul the **yards around** xxx after the boat was capsized. a long cylindrical spar with a taper towards each end, slung crosswise to a mast and suspending a square sail, lateen sail, etc.

You went to the wheel.

I thought the lifeboat was thereafter safe when lying alongside the boat.

It was usual at KG8 to fxxx the boiler with fresh water out of the boats.

It is not usual for Masters of steamers to superintend the loading.

I turned off the pipe cooling the bearing when the engines stopped.

About 4pm when I went to change myself you were on the stoke hole coverings.

You told me the water was just appearing over the stoke hole plates.

When the women were put into the boat I thought the ship was going down by...

57-59

...the stern.

By the court, I by to correct my statement of yesterday that "I could swear no passenger did on the night of the 30th remark to me that there was some more water than usual in the bilge." I now recollect that no passenger did speak to me.

I also now to correct my statement that there be no repairs or hammering I now recollect that in moving the valve door of the bilge pump – there was hammering.

I cannot state more precisely than that was between 8pm and 12pm that I opened the valve in the bulkhead between engine room and Lazarette.

It was about 11pm when I removed the valve door from Bilge pump –

The water could not have got into the ship from leakage of condenser tapes? –

I now consider that the water in the engine room was not gaining in the engine room fxxxx...

60-61

Thomas Lennon being sworn saith...

I am Fireman on board the Georgette. I joined at Bunbury when she was loading – I was acted as Fireman before – I have xxx aboard a steamer before – I was on watch in Stoke Hold of Georgette from 8 to 12 on 30 November – I observed water in the Bilges but not over the stoke hole plates – I didn't hear any conversation in the engine room about the water in the bilges. I don't know

anything of the sea cocks under the stoke hole plate. The 2nd engineer was on watch at same time with me. I had no special orders from him. I left stoke hole about 0.30am. I didn't then know the ship was leaking. It was the custom of the engineer to come very often into the stoke hole – I was called up after day light and that was the first I heard of there being water within the ship – I know there were hot bearings during my watch but I cannot recollect whether the engine was raced it was not stopped. When called by the 2nd engineer in broad daylight I went straight down into the stoke hole – water was over the stoke hole plates – engines going – the stoke hole plates were, I think, never xxxx while I was on board – and I do not know of the existence of the cock in four xxx bulkhead – I made no enquiry about the water, went straight to work baling. I simply obeyed orders – I do not think I even gained on the water – the water was up to my waist, or probably higher when it extinguished the fires – I worked till the water was up to my neck – I then stood on the ladder, and when I left the stoke hole – it must have been about 8pm – water was over the stoke hole plates. The ship took the xxx around 4 or 5 hours after I left the stoke hole – I thought the leak was within the stoke hole – this my own private opinion. The only reason I have for supposing the leak was in the stoke hole, was because there was so much water in there...I heard no hammering in engine room while I was on watch – the chief engineer was in the engine room before I left – I occasionally looked at steam gauges and the steam was rather low – 30 to 35 – daresay it was my own fault – I believe there were only two stokes when I joined.

Xexam by Captain Godfrey

There were two hands baling in stoke hold when I went down – some stood on the ladder, then went on deck. They did continue baling after I came out of the stoke hold. I never thought xxxx about the fore compartment.

W. Lennon

MF 62-64

...while I was on watch. The Chief Engineer was in the engine room before I left – I occasionally looked at steam gauges – the steam was rather low – 3.0 to 3.5 – daresay it was my own fault – I believe there were only 2 stokers when I joined.

Xexam by Captain Godfrey

There were two hands baling in stoke hold when I went down – some stood on the ladder, then went on deck. They did continue baling after I came out of the stoke hold. I never thought xxxx about the fore compartment.

W. Lennon

John Wilson, being sworn saith...

I was Fireman on board the Georgette off and on for nearly two years – on 30 November I came off watch at 8pm and went on again at 4am. I was in my bunk from 8 to 4am and know nothing of what occurred during that time. I was called with all hands to bale – I xxxx learned – after taking away the ashes I saw water swashing about in the stoke hole – there was more water in the bilge than usual when I left at 8pm on 30th – I have at times seen more – and therefore had no suspicion that there was any leak – at 4am I was swatching over the plates and deck – I knew of the existence of a cock alongside the donkey boiler – I am in in the fore bulk head, close to the bottom of the ship – I did not see and do not know whether it was open or that after about an hour after I went into the stoke hole that would be about 5. 2nd engineer ordered me to shut blow off cock and I did. The water was then up to my knees. Fires just kept going. The 2nd engineer questioned me as to whether I had shut the cock and tried to feel it himself but couldn't reach for the depth of the water. After baling commenced I was dipping the bucket – don't know whether we gained on the water – we did gain on the water in the engine room – and baled there – the ship's cook and steward with us – we did gain on the water in the engine room – some time in the afternoon, someone on deck shouted to me to stop baling and come on deck – the shore was two miles distant – cannot say who it was shouted – all left the engine room and went on deck. – others did not relieve us and the baling stopped – no baling went on again in the engine room after this – the baling ceased in all parts of the ship at the same time –

I don't know whether the Alley Pump was tried during that night - I never heard anybody talk about the leak before or after I left the ship –

Xexam by Captain Godfrey –

I will not swear that the ship was two miles off the land when we stopped baling. She as a good distance off – I will swear that all hands left off baling when I did.

Sign with X Mark John Wilson

MF 65-66

Charles Wesley, Sub Inspector of Police in Bunbury being sworn saith...

I produce a certified copy of the onboard manifest of the Georgette from Fremantle, together with her Outward Report – by the latter it appears that the total number of souls on board when she left the vasse was 72

Ship's company all told 22

Passengers Men 27

Women 13

Children 10

50

Of those passengers the following are missing and supposed to be drowned –

Herbert Osborne

Mrs A Dixon

Mrs E Huxtable and child

Frances Hayworth

Isabella Hayworth

Mrs Davis and child

Eight souls in all

Signed

Walter M Geddes being sworn saith

I was a cabin passenger from Fremantle for Adelaide by the Georgette – I had twice before made passages between KGS and Fremantle – she was more deeply loaded than I have ever seen her before – we had fine weather and nothing particular occurred until after we passed the Naturaliste – during the evening and night of 30 November it was blowing a fresh gale – short choppy seas – she was taking a little water over – she was not very lively – the rudder seemed to be slightly loose – but the ship did not seem to labour or strain much – every day I have been on board on each voyage I have been in the engine room and stoke holes – previous to parting the Naturaliste I noticed there was more water in the bilge than I had seen on previous occasions – I had never seen any water awash in the bilge – at 8.30pm...

MF 67-68

...November 30 I was in the engine room. I saw there was a good deal of water in the bilge – and also in the tunnel in which the screw shaft runs – the 2nd engineer was in the engine room – I remarked to him that I thought there was more water than usual in the ship – he said the water always made that noise when she was rolling about. I did not mention this to the captain or any of the officers. I turned in about 10.30. At 10 o'clock the second mate and another hand came up out

of the Lazarette. At 2.20am I went on deck. The 2nd engineer came on the bridge where I was asked to see the mate. They then went into the Lazarette – and were down about $\frac{3}{4}$ of an hour – I was then lying on one of the after lockers – I went to sleep and did not wake till about 6am. At that time there were hands baling out of the Lazarette – the fires were out and hands clearing away the boats. I went to engine room and should think there was six feet of water there....

68-69

...the Boats. I went to engine room and I think there were six feet of water there. The fires were out the 1st Engineer came on deck and reported that the water was growing. The lifeboat was then lowered.

The water I saw in the engine room at 8.30 was under the machinery.. I had an impression that the leak was about the engine. I had no special grounds for forming that opinion.

The lifeboat thumped heavily against the ship's side when lowered. Two hands in her commenced baling as soon as she hit the water – the passengers were put into her on the portside of the ship – I thought 4 or 5 could comfortably have been put into her. There were four people baling, but I thought she was not overloaded – I should have preferred going in the boat, to remaining with the ship. Heard two say it was all they could do to keep her afloat -their saying so caused the caption to prevent putting more in.

The water was gaining rapidly within the ship and I expected her never to reach the shore. Later in the day I noticed the ship was settling down by the stern – I did not actually see the accident in which the boat capsized – I saw the people in the water. The ship was put back - and every possible exertion was made to rescue the people in the water. The captain was quite cool xxxx the 2nd mate to jump overboard which he did. I saw the gig leave the ship for the lifeboat. I didn't see any effort made by the officers to discover where the leak was. It was possible the leak may have been in the fore hold but I was also of the opinion it may have been in the engine room but I have no special reasons for forming that opinion. Further than that the water in the engine room kept much higher than in the Lazarette.

The gig would have not have held more people than were in her – I remained with the Georgette till she grounded...

MF 70-71

...at 3.10pm on 1 December. The landing of the people from the ship was effected with difficulty, but without loss of life- we were landed with the Pinnacle. There were no orders given when the ship was two miles form the land for baling to cease – it went on until she grounded – and many of the blokes complained about having been kept baling until after she grounded.

I didn't overhear any conversation between any of the officers or the crew of the ship which gave me cause for anxiety.

Since the loss of the ship I have heard rumours of unfair play on the ship on the part of the officers but I attach no importance whatsoever to such rumours.

Cross-examination by Captain John Godfrey

On Friday morning the deck pump was kept constantly at work.

I don't know what they were baling with within the lifeboat - I don't recollect whether the main trysail was set when the boat was lowered. I saw it being let down some time afterwards. I don't think it would have been safe to have kept the ship waiting for the gig.

A man was sent aloft to look out for the gig - the lifeboat.

It was about 9 o'clock when the people were put in the lifeboat and I think we were then about 20 miles off the land.

I have no doubt that with the people she had in her, the lifeboat could have reached the land in safety but for the accident which capsized her.

After the accident, when the water was increasing in the engine room, you ordered all buckets from the Lazarette to bale within the engine room - for there the water was gaining most rapidly.

All the storm ballast that was passed out of the Lazarette that could be got at.

M. Geddes

MF 72-73

Archibald McLeod, being sworn saith:

I am AB on board the Georgette - I xxx xxx on board xxxx xxxx - joined Georgette in Bunbury when she was loading timber. She was half loaded when I joined her. I saw some of the logs in being got in strike the forward bulk head, but not the side of the ship with violence - I was in the starboard watch - I cannot remember what watch I had on the evening of 30 November 1876 - I recollect being turned out of the xxxx at 4am on 1 December - I went aft to the wheel. The course given me was S.E. I did not know that the ship was leaking - I remained at the wheel for 10 minutes - Captain sent me forward to lend a hand to make sail- then I returned to the wheel. I then knew the ship was leaking because I saw hands baling from cabin - I did not see any Pump tried or worked - ¼ hour after was sent from the wheel by the captain to help get the boats ready - did not help the baling - helped to lower life boat on weather side - two oars were placed on skids on the ship's side - the main topsail was hauled up - I believe the Helm was hard up and the ship was xxxxxxing off - I was lowered into the lifeboat - she thumped against the ship's side in being lowered - sufficiently hard to make her leak - she began to leak and xxx she reached the water but not much - the boat was

dropt astern and brought to portside – I was steering the boat with an oar – the ship was going slowly thro’ the water – the other hand was baling – there might have been 10 inches of water in her – that had been made over 5 or 6 minutes – it was over the stern sheets – she was pretty well filled up by the people that got in – she had about 14 or 15 inches of free side – the baling was continued. The boat was hauled up again on port side – to above the main rigging – a couple of Passengers got into her – I called to the Captain that there were enough passengers within the boat – the Captain said he would not put more in – and told me to sheer off...

MF 74, 75

I could not because the gunwale of the boat got under the moulding – and caused her to fill with water – the orders were not given to slack away the painter – till the boat was under the moulding – she was slacked away from the ship and dropt astern – when dropping astern she fell under the counter and she capsized – all were thrown out into the water – I stuck to the steer oar and got out into the Gig and let go – we went to fish the man or boy out of the lifeboat and did not see any others floating in the water – I swear the lifeboat was slacked away from the ship – I think if she had not gone under the moulding and filled she would have reached the shore – the women and children shrieked out but nobody moved – I got ashore on the Gig – I thought I would be as safe with lifeboat as aboard the ship – I knew nothing of the leak

Cross ex by Captain Godfrey

I went down with the second mate into the Lazarette to clear the pump. That was in the front watch. As soon as I came up from clearing the pump, I went on the look out. I did not see the mate go into the life boat. I will not swear that the boat did not shear off from the ship after the last of the passengers got it –

I swear that the boat was slacked off from the ship – some painter may also have been slacked off from the boat. There was one bucket, may have been two.

I am sure the boat got as far aft as the counter before she capsized...\

By the court, when I went with 2nd mate to examine foot of pump in Lazarette – found it choked with mud – there was about 4 in water in the bilge – the rose of the pump was partly within water – don’t know whether alley pump had been tried

Archibald McLeod

Thomas McGovern being sworn saith

I shipped at Fremantle in the articles as AB but was to pay 5 pounds passage money - I was cook aboard the xxx xxx. I had not to keep watch on deck. I slept within fore cabin under the fore cxxxx. I

turned in about 10pm on 30th November. Not much sea on – did not know the ship was making water – I did not wake until I was called about 4.30am. By the order I went to the pump in the alley way on the port side – the 2nd officer was there – it did not fetch water – I cannot tell if there was water – even when we fed it – we were about 10xx trying it – we could get no water up – the captain then told me to go and assist baling – in the stoke hole – there were three in the stokehole – one of them was on the ladder – from five to nine the water remained xxxx and then it gained a little – Off and on I was baling to the last – we didn't stop the sxxxxx – I heard no orders to stop baling until we struck the ground – the water was never over the cabin floor –

I did not hear the water swirling about amongst the timber in forehold – the ship when I was called up at 4am was not rolling about very much – there was only a temporary wooden partition between fore hold and fore cabin – and if there had been water any height with fore hold, I must have heard it – I did not even hear it when I went for my clothes just when ship grounded .

Corss exam by Captain Godfrey

I did not leave working at stoke hole until 9am. I didn't know of there being bottled beer in fore cabin – I did not break one open- you did not check me for drinking – You only once told me to come out of fore cabin to work. That was in the afternoon.

I recollect you catching hold of the pump in the alley way and trying it about 5am. It did not bring up any water. I did not go to the pump aagain.

Thomas McGovern

MF 77-79

I didn't hear the water swashing about amongst the timber in forehold – the ship when I was called up about 4am was not rolling about about very much – there was only a temporary wooden partition between the fore hold and fore cabin -and if there had been water of any height within fore hold I would have heard it – I did not even hear when I went for my clothes when ship grounded –

Xexam by Captain Godfrey

I didn't leave working at the stoke hold till 9am – I didn't know of there being bottled beer in fore hold – you did not check me for drinking – you only once told me to come out of the cabin to work. That was in the afternoon.

I recollect you catching hold of the pump in the alley way and trying it about 5am. I didn't bring up any water. I did not go to that pump again.

Thomas McGovern

James Campbell Poole being sworn saith

I was a cabin passenger from Fremantle for Adelaide on board the Georgette – I recollect sailing from Vasse 30 November. I had never been on board the Georgette before leaving from Fremantle. From there to the Vasse nothing particular occurred – I never went into the engine room.

The first I heard of the ship making water was at 7.45am December 1. On the previous evening after 9pm I heard of the bilge pump being out of order – I did not from that think there was the slightest cause for anxiety – I was sleeping in the after cabin near the stern – I was disturbed by the sound of the rudder but not by the noise of baling in the forward cabin – I was called by W Geddes and saw there was water in the Lazarette – not much – they had been baling but baling had ceased – the water was not near up to the cabin floor –

I went on deck, looked down into the engine room. Saw water there. The water was decidedly higher in the engine room than in the lazarette.

I saw the lifeboat capsize. He had got in an awkward position by getting her gunwale under the moulding – all that time there was about a foot of water in her – and don't think it was much increased by her getting under the moulding.

I would have preferred going in that boat than remaining in the ship

Every effort that was possible was made to rescue the people in the water.

I thought the leak was in the engine room – and am still of that opinion – the water was never over the cabin floor –

I know of no sort of foundation for the rumours which have spread that the captain and officers had been instrumental in causing the destruction of the ship...

Xexam

80-81

Xexam by Captain Godfrey

I didn't see the mate get into the lifeboat. I told you the balers in the Lazarette were gaining on the water which you said that notwithstanding, you would put the women and children in the lifeboat for safety to stow astern – for when the ship got below her bearing she would go down xxxx

I thought we had a worse chance than there in the boat.

Disciplined was maintained under a great deal of c..... and courage displayed by the Captain and his officers.

William Sinclair on his oath saith

I cannot say howmuch higher the xxxx engine room platform is...than the cabin floor – it was higher – Previous to being stranded the water was, I believe over the upper platform in the engine room – I cannot swear to it – the lower platform was about two or three feet below the level of the cabin floor – I never saw and do not know the size of the sluice valve in after bulk head – generally they are the same size in each bulk head – the cock in the fore bulkhead would be from 4 to 5 inches. It was a valve in the after bulk head. I do not know at all whether the pump within alley was worked that night or morning.

W. Sinclair

MF 82-83

William Sinclair, recalled, on his oath saith:

I cannot say how much higher the upper engine room platform is – than the cabin floor – xxft higher – Previous to being stranded the water was, I believe, over the upper platform in the engine room – I cannot swear to it – the lower platform was about two or three feet below the level of the cabin floor. I never saw and do not know the size of sluice valve in after bulk head – generally they are the same size in each bulk head - The cock in the fore bulkhead would be four to five inches. It was a valve in the after bulk head – I do not know if the pump in the alley was worked that morning.

W Sinclair

Joseph Horrigan, 2nd engineer sworn saith

During the night of November 30th I did not see the cock in the fore bulkhead. I have seen sluice vale in after bulkhead – it was of oblong shape – I would say it was about 5 ½ - 4 inches – In the fore bulkhead the cock was about 4 in plug – the stream of the water passing through the cock would be about 2 to 2 ½ in diameter – The upper platform of engine room would be about 6 feet above the cabin floor.

Joseph HOrrigan

Court adjourned at 6pm

Anne Brennan on oath saith

I was stewardess on the Georgette – I heard no unusual noises in the engine room – I got up at 2am – Could give no information xxx taking down in xxxx –

Anne Brennan

MF 84

Thomas Connor being sworn saith

I am senior partner in the firm of Connor & McKay and part owner of the Georgette. She was an iron steamer built in Glasgow 1872 – 211 tons – xxx 6800 xxxs

I was a passenger on board her from Fremantle on her way to Adelaide – the management of the affairs was in the hands of her agent at Fremantle – the ship was insured in Melbourne for 1000 pounds – I was owner of the timber which was insured for about half its cost – I think the insurance effected for cargo and freight was 800 pounds – the cost of the timber was over 800 pounds.

Nothing particular occurred during the voyage from Fremantle to Bunbury and vasse which latter place we left on November 30 at 9.30am – I went to my cabin between 3 and 4 in the afternoon of the 30th and did not go up again till between 4 and 5 – all on deck...

There was not a very heavy sea. I have on previous occasions been on the Georgette when heavily loaded – she didn't seem to labour o

Page 85

There was not a very heavy seas. I have on previous occasions been on the Georgette when as heavily loaded. She did not seem to labour or strain much. When I turned in afternoon I was not aware of there being any more water than usual in the Bilge, or I should have heard of it. About midnight I found that there were b xxx below and and I found that there was baling going on within xxxx – I was sleeping in forward saloon in starboard side – I had not at that time been made aware that there was any leak. I did not get up until about 4am and till then when I went down on deck I had not made any enquiry of the captain or officers into the necessity for the baling – imagining that there was nothing of consequence. I asked the captain what was the matter, his reply was, “there is something very much the matter but we don't know what it is, or where it is.” He said they had been trying to find the cause, but had failed to do so, and that concerning the leak, it was getting worse rapidly. I don't know whether the deck Pump was at work before I got up but shortly after I was up I saw cxxxx at work.. Shortly after that every man on the ship was busy baling – the water was close up to the Fxxx when I went up on deck and the screw was scarcely working. The water continued to gain rapidly. I considered the ship to be about 25 miles of the Land. She was considerably south of the Sandpatch and I think Cape Leeuwin was in sight. The ship was heading directly for the land at the Sandpatch – such was the case when I got on deck – xxx did xxx Ashbarton that xx of xx flying – cannot say at what time of day that was – she was xx down.

I saw the lifeboat lowered. The Captin consulted me about getting out the boat after he had consulted the Engineers when it looked very serious. The ship was by that time very much more by the sxxxxx than she had been during the morning. I helped to drop the lifeboat over. At that time there was no water in her – I swear that. The women were not put in immediately . I pulled the boat to the port quarter. Some time had elapsed but I could not say how much. I went forwards and came back again and still there were no passengers in her. I did not see the women put in her and I cannot say whether there was any water when they were put in. My attention was first caught by

the shouts of Captain Godfrey "back away, back away you will drown everybody in her". People were then struggling to get out to xxx xxxPage 2

Charge 1 "hasty, violent and mxxx loading at Bunbury and that any injury to the ship was caused thereby"

2 "that the Georgette boats were seaworthy when she left fremantle"

3 "that although the lifeboat was in a leaky state, Captin Godfrey, under the circumstances, was justified in placing passengers therein as a precaution, and that the upsetting of the boat and loss of life therefrm was accidental and in no way caushed by the leaking of the boat."

5 that the ships pumps were undmanaged and in working order when she left Fremantle

Being the circumstances of the lifeboat, the state of the wind and sea and the fact that the ship floated for another six hours after the boat was capsized we consier that Captain Godfrey was not justified in placing passengers in said boat and was guilty of a grave error of judgement in so doing.

We are of the opinion that Captain Godfrey was guilt of a grave error of judgement in not taking steps to ascertain the condition of his ship at 8pm on November 30, with a vie wto xxxx back, seeing the xxx xxx of the report of the chief engineer with regard both was the unsatisfactory working of the Bilge Pump and the suggestion that the Dick Pumps shuld be gotg ready for working

That seeing the second engineer was xxx aware of the increase of water xxx ship during the evening of 30 November, he was guilty of neglect of duty in not reporting to the captain.

87-89

...he had consulted the engineers when it looked very serious...the water was by this time very much by the stern than she had been during the morning- I helped to drop the lifeboat astern – at that time there was no water in her – I swear that – the women were not put in immediately – I pulled the boat up the port quarter – some time elapsed first, but I cannot say how long – I went forward and came back again and saw there were no passengers in her – I did not see the women put in her and cannot say whether there was any water when they were put in – my attention was first called to the boat by Captain Godfrey calling, slack her, slack her or you will drown everybody in her..' People were then struggling to get into and kept her off the side

...into the ship

Horrigan?

90-91

James Lambe being sworn saith

I live in Bunbury. Formerly trader was passenger for Adelaide by Georgette. I was on deck evening of 30 November till about 8 o'clock. Soon after 10pm I lay down on the cushion of after cabin – and fell asleep about 11 – I was awakened some time later by a noise like hammering with some other xxx instrument, proceeding from the direction of the engine room. It lasted 4 or 5 minutes – after I woke this time the rudder was also making a great noise – I went to sleep again – did not wake up again till about 5am and commenced baling within Lazarette – by 8 or 9 o'clock we had gained 8 or 9 inches of water.

Shortly after this all hands were ordered on deck. The boat was alongside and I assisted the women into it. They were baling it out at the time. I cannot say what depth of water was in the boat – I think it was up to the bottom of the seats – Mrs Davis and Mrs Harris were sitting on the seats baling – there was a bucket xxx xxx – it must have been up xxx of the women. They were with the attitude of looking when they were baling – the mate was in the boat at this time – it was the second occasion when the boat was drawn up for more passengers that I noticed the water within.

I would have preferred remaining on the ship.

I considered the leak was within the engine room from the quantity of water I saw there and from what I was told the rapidity with which it came in....

91-93

...I do not know what the hammering was – it was a distinct hammering with some xxx instrument. It was not throwing the store ballast about. I think everything that could be done was to save lives.

By the court

I have had some conversation with a Passenger about the evidence I was going to give – it was not the owner, it was Mr Poole – I told him that I should state in evidence that I had heard the hammering to which I had called his attention when we were lying down on Cabin Cushions – he did not make use of threats – if I stated so – the threat being that he would swear I was drunk – Mr Poole was not quite sober when he said this to me – it might have been in a peculiar manner xxx make no impression xxx

James Lambe

William Dundee, chief officer, recalled and sworn saith

When I was standing in the bow of the lifeboat with the painter in my hand I did hear Captain Godfrey say 'slack away' – I did slack away in obedience to that order. I think xxx four fathoms – she was close alongside the ship at that time.

Cross by Captain Godfrey

I slacked when you gave the order but the lifeboat dropt astern but sheared along side. To the best of my belief she was afoot off the ship when you gave the order.

William Dundee

John Dewar, 2nd officer sworn and recalled saith:

I heard the captain order to W Dundee to slack away – shew as about a fathom or fathom and a half off the ship when the order was given – it was not immediately obeyed – there was nothing slacked away till she came up against the ship's side. If the order to slack away had been immediately....

MF 94-95

...obeyed, the boat would have dropt clear of the ship.

There was the lead patch on the boat. I do consider a boat patched with lead to be seaworthy....

John Dewar

William Onslow being sworn saith...

I am Surveyor for Lloyds Agent at Fremantle – as such it is part of my duty under the Passenger Act to survey ship before she gets the clearance – I surveyed the Georgette the day she sailed from Fremantle – there was Master Shipwright with me- W. Storey – I examined the Georgette's pumps – first we went into the alley way – it is about with the deck about 3 in. drawn – the ship was full of cargo and did not examine xxx of pump – did not try it.

Then went to after pump – did not examine it below or try it...

I examined the Ship's Boats. The Lifeboat was in very good condition – did not put it or the others in the water – the Pinnace by my order was caulked along the keel before I passed her – the Gig was in the water and I ordered her to be hoisted up and found a small leak close to the stern, which was repaired before I passed her

95-97

(duplicated)

97, 98 99

...was a passenger in her to Bunbury.certificate she was cleared by the Water Police.

I went down to xxxx of the Georgette since she was stranded – about a week after it happened. The sea was breaking over her and I could not get on board. She was condemned as a wreck and left to finish ...storey

Crops by J Godfrey

I have been xxx passenger vessels being passed with patches on their boats. By the court I believe the Georgette had sufficient boats for the number of passengers on board as required by law. I could not have passed her if she had an insufficient number of boats.

In defence John Godfrey saith

As soon as the leak was reported I thought the ship was going down. I ordered out the life boat and put the women and children in for their safety, intending to tow the boat till the ship sank. If I have done anything wrong I hope the Court will look at it as an error of judgment and not through any negligence or fault.

Written depositions of:

William Dundee

William Sinclair

John Dewar

T Lennon

Joseph Horrigan

Charles Wilby – Chief Inspector of Policy

Will Geddes – passenger

Archibald McLeod- Able Seaman

McGovern ?

Poole – passenger

Brennan- Stewardess

Connor – crewman

Lambe ?

W. Onxxx ?

99-101

Second inquiry – charges against:

Godfrey

Sinclair

Horrigan

Dundee

Formal charges against Captain and officers of the Georgette preferred..

John Godfrey master

For that on the 30th November at sea John Godfrey being....master...did not take steps to ascertain the condition of the ship at about 8pm with a view to putting back , on the receipt of the unusual report of the Chief Engineer, with regard to the unsatisfactory working of the bilge pump and the engineer's suggestion that the deck pump should be got ready for working

William Sinclair chief engineer

...did neglect his duty in not having reported to the captain that he noticed a quantity of water in the ship at 8pm on 30th November

101-103

Charges in detail against Godfrey

William Sinclair being sworn saith

I was Chief Engineer on board the Georgette at the time of her loss on 1 December 1876. I was on watch from 2 to 8pm on November 30th. Between 4 to 6 I noticed that the ship taking in slightly more water than usual.

104-105

The Bilge Pump was giving some trouble and not working satisfactorily. The xxx must have been partially choked by the sxxxxx coal and ashes getting into the Bilge. The valves were not exactly tight - I have on a good many occasions known it get choked and give trouble in keeping the valves clear from the stuff which comes up the Bilge Pipe - between 7 and 8 of that day I reported to the Captain that the Bilge Pump was giving some trouble and that from the ship being more heavily loaded than usual. She was making a little more water than she usually does - I said I thought it would be right to see that the deck pumps were workable, just as a precaution - I meant the two deck pumps - one on the poop - the other on the main deck in the alley way. I saw them working the pump on the poop. I did not see anything done with the other pump - the second mate was one of 'them' trying out the pump - I did not consider it necessary and did not to see that it worked properly. I recollect I did stop to see it tried and as no water came we thought she now was stopped, and suggested someone being sent into the Lazarette, to see if the core was clear - it was unusual, my suggesting to the Captain to try the deck pumps - I never had suggested that the deck pumps should be tried - I mean during the 12 months I had been on board the Georgette - I had seen it tried I think a couple of times - but that was not on my suggestion - I had never before seen the Georgette loaded so deeply -

At the time I reported to the Captain there was 2 to 3 feet in the Bilge - I do not think I mentioned to the captain the depth of water in the bilge - I told him the water was increasing a little...

MF 106-107

...upon us, but nothing of any consequence.

The 2 to 3 feet of water in the Bilge would not be an unusual quantity when she was at sea - I have seen at times more than in her - but as the water was increasing slightly and the Bilge Pump was not working well, I thought it advisable to suggest to the Captain getting the deck pumps in working order -

It was by my orders that slightly after 8pm the second engineer went to the Lazarette to examine the deck pump - I don't know whether the Captain knew this - that was an unusual order to 2nd engineer - had never had occasion before - I went off watch at 8pm and Captain Godfrey did not make any subsequent enquiries of me till about 2am to 3am - I had been on watch from 12 o'clock - at that time the water had increased by about 8 to 10 inches - but was not over the stoke hole plates - I didn't report the increase to the Captain and didn't feel alarmed till 2am and should not then if we could have got the Bilge Pump to work properly...

As a sub deck pumps on board a steamer are seldom used

I sent the 2nd engineer into the Lazarette about 7.30 to 8pm to examine the rose? Of pump of consequence of it not bringing up any water when tried.

The valve at the time in the after bulk head was closed, as it always is –

The ship's head had been put for the shore before the fires were out –

At 2am the Captain, I think did consult me about the advisability of baling. I cannot swear that he did so, but I think he did – the Captain had not at any time during the evening or early part of the night spoken to me about putting back.

X exam by John Godfrey

I didn't think there was the slightest cause for alarm when I spoke to you about 8pm...

MF 108, 109

You did try the after pump while I was standing there.

You sent the 2nd mate down into the hold, and begged me to send down the 2nd engineer.

I will not swear that I mentioned to you the forward pump – I spoke of the pumps which includes both

It was the after pump you went to – so far as I know you did all a seaman's duty in trying to save the ship and lives too

You did ask me when I spoke to you about 8pm what water she was making – I replied very little – through the bilge pump not working

I certainly did not think xxx make for the land, when she was making very little water.

W. Sinclair

Recalled at Captain's request for cross exam

I cannot swear but think xxx told you at 8pm that I should be able to set the bilge pumps to right when I got to the xxxx.

W Sinclair

William Dundee being sworn saith

I was chief mate on the Georgette at the time she was lost – I was on watch from 6 to 8pm on November 30th – in the presence of the captain drew the boxes of the deckpump about 8pm. As far as I know nothing was done with the alley pump – To my knowledge there was no way of sounding the xxx.

The officer on watch for the time being would be the person to sound the xxx when there was no carpenter – there was no carpenter on board Georgette.

As far as I know the trying of the deck pump was done only at that time - I didn't know that the ship was making any water at all – the Captain didn't speak to me about coming back. Didn't know until 3am 1 December that the ship was making water...

MF 110-111

Xexam by Captain Godfrey

She was heading – at 2pm – at 8pm did not know of any reason why she should be put back.

William Dundee

John Dewar being sworn saith

I was 2nd mate on the Georgette at the time of her loss – I was on watch from 4 to 6pm on November 30th – I was on deck still 8pm. At 4pm she was on the port tack, the wind was about south west, she went about during my watch between 4 and 6 cannot remember the hour. Cannot say the distance from the Cape when we went about her on the starboard tack – would have been about S to SE – after rounding Cape Naturaliste it was a foul wind. The ship could not keep her course and was tacking. At 8pm the wind was still about SW – Cape Naturaliste was under the lee – cannot say the distance – think it might be about ten miles – I was ordered by the Captain at 8pm to try the deck pump – and I did try it – I think the chief engineer was about there when we tried the pump – I am not certain whether we tried the alley pump – I was on watch again from 8 to 12 – I was down in the Lazarette till about 10pm clearing the pump – I went down again with 2nd engineer – there was not then water enough for pumping...

MF 112-113

...to fetch. The captain gave me strict orders to try the pump again at 7 bells = 11.30 and he then went below and ordered me to have him called at 2am, and for the chief mate to try the pump at that time. That was about 10 o'clock. There was in Georgette no sounding pipe for finding depth of water in the hold. It was an unusual thing to try the deck pump. It had been tried about 10 days to fortnight before. That was not at the engineer's suggestion. It was xxxx my own thought to see the pump xxx all right. It was part of my duty and I did it without orders – we were at sea at the time. That was before we loaded at Bunbury.

I was on board the Georgette 21 months, the last 8 months as 2nd officer. It might be about once a month we tried the pump, only when there was little to do. I never did know during the time onboard Georgette the engineer suggest to the Captain to get the deck pump in order. If he had done so I would have considered it an unusual thing...

The captain did not that evening direct me to try the alley pump. It was the next morning we tried it. I will not swear that I did not try it that evening. All that I did by the captain's orders was to try the deck pumps and clear the rose in Lazarette.

I did not know the ship was leaking. Neither of the engineers spoke to me during the first watch 8 to 12. I had no directions or enquiries from the engineers and had no orders whatever from the Captain with reference to water in the ship, except to try the pumps at 11.30 and tell the chief mate to try them at 2am – and to call the Captain.

The Captain did not say anything to me about putting back- I did not know of any reason why he should put back – had no idea of it.

Xexam by Captain Godfrey

I recollect you asking me at 10pm whether I was quite sure that the rose was all clear. When you asked me to try the pumps again....

MF 114-115

Court reassembled 1 January 1877 9.30am

Joseph Horrigan being sworn saith

I was second engineer...at the time of her loss...On the 30 November I went on watch at 8pm and remained in charge in the engine room until the second engineer was called up by my orders about 12 o'clock – Captain Godfrey did not at any time during my watch come into the engine room or make any enquiries of me.

Xexam by Captain Godfrey

When I went down below at 8pm I did not think there was any cause for alarm. When I came out of the Lazarette about 10pm you asked me if the rose of the pump was clear – between 8 and 10.

J Horrigan

MF 116

John Dewar recalled and resworn

I was 2nd...loss...at the time I was overhauling the poop pump With Captain Godfrey – he was not, or at any during during the night under the influence of liquor – he had been first officer for five months and master for about one month.

Xexam by Captain Godfrey

I think you would have at 8pm told me about it if you had supposed there was any cause for alarm.

I have never seen you at any time on the georgette under the influence of liquor. You took no liquor at all.

John Dewar

MF 117-119

John Godfrey in defence saith

When on the evening of the 30th November the first engineer came on the Poop he said, in a careful sort of way, that his Pump was not working well. If I were you, he said, I would see and get that other Pump rigged. He said his Pumps were a bit troublesome thought stop during the night and then this one (meaning Poop pump) would be all clear. I asked if there would be any cause for alarm, and if he thought his pumps likely to stop during the night. I will put the ship under sail for a couple of hours. I went and asked the 2nd mate as he knew where the gear was to come and rig it. It did not fetch water feeling satisfied in my own mind that the rxxx was clear I xxx him down into the Lazarette to clear away some stoke baleout therewas about it. I took some precaution and cxxxx that the Engineer pumps xxx during the night. He said he thought his own pumps would take the water out of the ship. When I said I would put the ship under sail for a couple of hours that was in consequence of the engineer saying it would take him two hours to get his pump in order. He said it was not necessary there was no cause for it.

J Godfrey declined to call any witnesses

119-120-121

Written deposition of Dundee, Sinclair, Dewar, Horrigan

Having in accordance with the provisions of 28 Vic No. 2 formally investigated a certain charge preferred against John Godfrey, Master of the S.S. Georgette at the time of her loss on 1 December 1876

For that on 30 November 1876 at sea, John Godfrey being the master of the S.S. Georgette, did not take further steps to ascertain the condition of the ship at 8pm, with the view of putting back, in receipt of an unusual report of the Chief Engineer, with regard to the unsatisfactory working of the bilge pump and the engineers suggestion that the deck pumps should be got ready for working.

We find that about 8pm the Chief Engineer did report to Captain Godfrey that the ship was taking more water than usual, that it was increasing xxx, and that in consequence of the bilge pump giving some trouble and working unsatisfactorily, it would be advisable to get the deck pumps in working order.

That each report and suggestion from the Chief Engineer was unusual.

That except getting in order the pumps on the poop, leading from the after hold, and giving directions to have it tried again at 10 and 11.30, no steps were taken by Captain Godfrey to ascertain the depth of water on the ship, its rate of increase or whether the bilge pump was doing its work properly.

That had Captain Godfrey at any time between 8 and 10pm ascertained the condition of the ship, and the actual working of the bilge pump, his right course would have been to have put back, Cape Naturaliste at times being under the lee and from 15 to 25 miles distant.

Whereupon....

122-123

Whereupon we find Captain Godfrey guilty of neglect of duty in not ascertaining the condition of the ship and of a grave error of judgement in not putting back when it was practicable. And therefore the judgement of the court is that the certificate of Captain Godfrey be suspended for 18 months.

Deposition on oath etc -30 December 1876 – William Sinclair neglected his duty not having distinctly reported quantity of water 8pm 30 Novemer

Joseph Horrigan being sworn saith

I was second engineer on the Georgette at the time of her loss. ON 30 November I went into the engine room at 8pm. I relieved the Chief engineer who had been in charge since 2pm. There was more water in the bilge than I had noticed at 2pm. It had increased from about 2 to 3 feet...

MF 124-125

...that would be about a foot below the stoke hole plates. The stoke hole plates are about a foot lower than engine room platform – 2 to 2.6 would be about the ordinary depth for water in the bilge. I asked Mr Sinclair if the Bilge Pump was in xxxx troublesome . It was in reference to water in the bilge. I xxx remember whether Mr Sinclair called my attention to the water in the Bilge – I will not swear whether I called his attention to the increase in the water – I may have done so and I cannot recall whether he called my attention to it – It was not possible that the chief engineer could have been on duty from 2 to 8 without noticing that the water had increased. Mr Sinclair said the bilge pump was acting troublesome that she was not working regularly – the same thing has occurred before – it may have arisen from the wear of the pump or the hose being choked...she worked very well between 8 and 12 it was giving more trouble than usual. Mr Sinclair did direct me to call him if the water increased – it did increase but I did not call him till about 12. By that time it had not increased afoot and was not on the stoke hole plates.

Mr Geddes called my attention to the depth of water, but I cannot swear whether it was that night or the night before – I mean between Fremantle and Bunbury.

If the Bilge Pump had worked properly it would have freed the ship of water up to 12 o'clock.

Cross exam by W. Sinclair

When you relieved me you stated the bilge pump was troublesome – I cannot swear that you did say so, but it was a very likely thing xxxx I have said – that the water had increased. The water in the bilge at 8pm did decidedly not cause me any alarm. I have seen far more water in the bilge than there was on that occasion –

You told me that you had reported to the captain, to get his deck pump ready...

MF 126, 127

...as our Bilge Pump was troublesome.

You used all the appliances at your command as Chief Engineer to keep the ship free of water.

I correct statement about W. Sinclair directing me to call him. I do not recollect his mentioning the water at all but I was to call him if I made more than I could manage.

John Dewar being sworn saith...

I am second officer of the Georgette at the time of her loss...I was on watch on her deck from 4 to 6pm 30th November...about a quarter before 8pm I was ordered by the Captain to try the deck pump. I was not present when the Chief Engineer spoke to the Captain.

W. Sinclair declined to ask any questions.

MF 128, 129

John Godfrey being sworn saith...

I was master of the Georgette at the time of her loss...had been so about a month. I had previously been about 5 months chief mate – we rounded Cape Naturaliste about 2.30pm November 30 bearing S.S.E distant two miles – wind about S.S.W on port tack – continued on that tack till 5pm. Went about headed on a starboard tack about S.S.E. and then broke off xxx to about East. Kept on that tack till about 7.30 – then went about being about 10 miles off the shore – she then headed to about S by W – she didn't then go so fast or xxx off the head sea. I was on deck when the ship was put about.

Just after the ship went about the chief engineer told me the pump was very troublesome below, and that I had better get my pump ready aft – I asked him if the ship was making more water and she said that we was making a little more than usual – on account of her being a little deeper in the water than usual – I gave orders to get the deck pump ready to assist his pump which was working a little bit – it was in consequence of W. Sinclair suggested that I should get the deck pump ready. I asked him if she made much water and he replied what I have stated before that she making a little more water than usual – I saw no cause for alarm for what he reported.

Xexam by W. Sinclair

I recollect your calling me up between 2 and 3 December 1 to go into the Lazarette – I believe you tried everything you could

MF 129, 130, 131

...get any pump ready aft. I asked him if the ship was taking more water, and he said it was taking a little more than usual...I gave orders to get the deck pump ready...it was working a little bit...it was in consequence of Sinclair's suggestion ...get the deck pump ready. I asked if she made much water and he replied what I have stated before that she was making a little more water than usual. I saw not cause for alarm from what he reported.

Crpain? By W. Sinclair

I mentioned your calling me between 2 and 3 December 1st to go into the Lazarette.

I believe you tried everything you could to keep the vessel clear of water.

Signed Godfrey

The written deposition of

Joseph Horrigan – 2nd Engineer

John Dewar – 2nd mate

John Godfrey – Master

Clifton etc

William Sinclair in defence saith

The water had increased a little by that time, the time I spoke to the Captain between 7 and 8pm. I reported to the captain that the bilge pump was troublesome and that there was a little more water in the ship than usual. It was simply through the bilge pump not working that there was a little more water in the ship than usual – and suggested that he should get the deck pump ready. I was not the slightest alarmed by the increase in water.

W. Sinclair

MF 132-133

Busselton 30th December 1876

Having in accordance with the provisions of the 28th Vic No 2 having formally investigated a certain charge preferred against William Sinclair, Chief Engineer of S.S. Georgette, at the time of her loss on 1 December 1876.

For that on the 30 November 1876 at sea, William Sinclair being then and there the Chief Engineering of the S.S. Georgette, did neglect his duty in not having distinctly reported to the captain that he noticed an unusual quantity of water in the ship at about 8pm on the 30th Nov.

We find that at about 8pm on 30 November William Sinclair, Chief Engineer of S.S. Georgette, did report to Captain Godfrey that there was more water in the ship than usual; such unusual quantity of water arising from the unsatisfactory manner in which the bilge pump was working whereupon we acquit William Sinclair of the charge of neglect of duty and return to him his certificate.

Signed and concurred

133-135

Whereupon we acquit William Sinclair of the charge of neglect of duty and return to him his Certificate.

Busselton 2nd January 1877

Having accordance to the provisions of the 28th Vic No 2 formally investigated in certain charges preferred against Joseph Horrigan, 2nd Engineer of the S.S. Georgette at the time of her loss on 1 December 1876.

For that on 30 November 1876 when Joseph Horrigan being then and there the 2nd Engineer of the S.S. Georgette did neglect his duty, in not having taken further measures to ascertain the cause of the increase of water in the ship during the front watch on the evening of November 30th – of which increase he was evidently aware.

Water Geddes, being sworn saith:

I am a cabin passenger from Fremantle ...for Adelaide by the Georgette at the time of her loss. I had twice before made passage when bound from Albany and Fremantle – she was deeper loaded the last time than I had ever seen her before. I have been in the engine room and the stokeholes previous to passing Cape Naturaliste I noticed no more water in the Bilge than before - - on previous occasions in fact I have seen no water in the Bilge.

At about 8.30pm on November 30th I was in the engine room – Joe Horrigan the Second Engineer was in charge – I saw there was a good deal of water in the bilge. I remarked to him that I thought there was more water than usual in the ship - he said the water always made that noise when she was rolling about – I didn't mention that to the captain or any of the officers – I turned in about 10.30 – I didn't go on deck again until about 1am. I do not know whether the engines were stopped between 8 and 12. It is possible they may have been stopped...

136-137

„or ceased without my knowing it. I am lying in the after lockers – close to the stern – I am not aware of any steps having been taken by the 2nd engineer between 8 and 12 to ascertain the cause of the increase of water within the ship. It is hardly possible that the engine could have been stopped without my knowing it between 8 and 10.30.

Cross exam by J Horrigan

When I spoke to you about the water in the bilge I had not any fear of the ship having sprung a leak. I swear at any time previous saw any water in the bilges.

I never at any time saw you neglecting your duty.

When I went out to the engine room I sat down at my usual place at the locker.

W. Geddes

William Sinclair being sworn saith

I was Chief Engineer on board the Georgette at the time of her loss on 1 December 1876. At 8pm on November 30th I was relieved by Joseph Horrigan the second engineer. He remained in charge of the

engine until I was called, at 12pm – my watch below was not over. At 8pm as near as I can judge there was about 2.5 feet of water in the bilge and the water was about 2 feet below the engine room floor. At that time the water was increasing slightly, but not to give any alarm – this the bilge pump not working satisfactorily. It began to give trouble between 4 and 6pm. It arose from the ashes, straw and rubbish getting up thro the pipe into the valves. It had on many occasions before given the same sort of trouble. The valves were not air tight we intended to get new ones at Adelaide.

MF 138, 139

After leaving Fremantle the Bilge Pumps had given me no trouble until 4 to 6pm 30th November. It was always working but not always throwing water. It is quite probably that I should have told the 2nd Engineer when I gave up charge at 3pm that the water was increasing – but I cannot swear that I did – I told him the Pump was giving some trouble and that if he could not manage it he should call me. The Leak was so slight at that time I didn't think twice or call anyone to give direction to ascertain the cause of the leak, thinking it was so slight and arose from the ship being deeper loaded than usual. When I went into the engine room about 12 I found that it had increased a little – I cannot say exactly but I think it had increased about 5 to 6 inches. It was not up to stoke hole plates, which are about a foot lower than the engine room floor. Horrigan said the pump had been very troublesome and the engine also. The second engineer when talking with me about the cause of the increase of water said that in reply to my question he had examined the sealock – there is a cock in lower part of forward bulkhead between engine room and forehold – that cock is always open – I cannot swear whether I asked the 2nd engineer whether he had examined that cock, with a view to ascertain the cause of the water increasing in the engine room – the cock was in a difficult place to get at – one of the stoke hole plates must have been lifted – he could have hxxxx if the water was flowing through the cock, by lifting the plate. And could have by such action have found whether the water was coming from the forehold on running from the engine room into it

I do not think it his duty so much to find out where the water was coming from...

MF 140, 141

...and get the water out of her. Those two duties might have been performed at the same time – I do not think it would have done any good – if he had examined that cock with a view to finding which way the water was flowing – we must have let the water come out the engine room as there was no other pump in use – I don't think I myself should have examined the cock as long as I could get the water out.

I don't know whether the engine was stopped or xxxx any time between 8 and 12 – I don't think the stoppage of the engine would have thrown any light on the question of where the water was coming from – I don't think it would have been a wise precaution to stop the engine for the purpose of listening where the water was coming from.

Except by examining the sea cocks, I am not aware that the 2nd engineer took any measures to try to ascertain the cause of the increase in the water.

When I went down at 12 the 2nd engineer stated that the bilge pump had worked for a time and then stopped, and that the valve had to be cleared so it would work again – and that this had occurred several times.

I hadn't in my watch up to 8pm needed assistance in managing the engine and the bilge pump at the same time.

It is a common occurrence to xxx the other in case of trouble in the engine room.

If it had been found out which way the water was flowing through the cock in forward bulk head, it would have afforded means for determining whether to keep that cock open or shut – but in any case I think it would have been advisable to keep the cock open

MF 142, 143

Xexam by Joe Horrigan

When I went off at 8pm there was no unusual cause for alarm.

At 12 o'clock when I went down I considered you had done your duty insofar as by my own power...

It is the duty of the engineer to have control over the cocks within engine room compartment including through the bulk heads

It is no persons duty, and of course I am aware, to examine the cock in the bulk heads when a ship is about to load

W Sinclair

John Dewar being sworn saith

I was 2nd officer on the Georgette and officer on the watch from 8 to 12pm on the 30th November. During the time I was on watch John Horrigan did not speak to me or consult with me about any measures that might be taken to ascertain the cause of the increase of water on the ship – or where it was getting in to her – the four aft sails were set through the watch – the engine was not stopped and I don't think it was xxx during my watch – I did not know that there was any leak.

John Dewar

Court adjourned to 10 o'clock tomorrow for attendance of other witnesses

MF 144-145

Court reassembled at 10am on Tuesday December 27 1877

Thomas Lennon being sworn saith

I am Fireman on board the Georgette at the time of her loss on 1 December 1876. I joined at Bunbury when she was loading – and never before been fireman. Had been coal trimmer before. My watch on November 30 was from 8 to 12pm. I observed water in the Bilge but not over the stoke hole plates. During my watch the pressure in the boilers was from 30 to 35 – it was never over 35 – generally up to about 40 – J Horrigan did not complain to be about my now heating the steam up, for we were very busy during that watch. I was drawing water into the engine room in buckets for J. Horrigan – I believe it was for hot bearings during the watch – I got water out of the pipe used for drawing the ashes – I threw some of it myself on the bearing of the shaft – I don't know how many buckets I carried, but we were busy about it, I daresay 1 ½ hours. Neither of the stoke hole plates was lifted during my watch. The engineer did not make any attempt to get to the lower part of the bulk head between engine room and fore hold – I believe the engines were not stopped during my watch. It was eased to half or quarter speed. It was just about as I was going off watch and I cannot tell you why it was eased. I do not know whether the bilge pump was giving any trouble. I did not during my watch see the 2nd engineer repairing or doing anything to the pumps. I could not see from where I was. The engineer did not then speak to me about water in the ship – and I did not know that there was any unusual water in the bilge. I have on one occasion only ever seen the steam so high – 43

Xexam by Joe Horrigan

I was throwing water on the crank and the bearing. ...

MF 146-147

...I didn't see you using the water. I brought in baskets, for many other purposes.

I am not sure the engines were not going slow at that time.

You did throw water on the condenser. I do not know the reason.

Whenever I looked into the bilge I saw water there.

Joseph Horrigan, 2nd engineer in defence saith...

During my watch from 8 to 12 that night there was not the slightest cause for any alarm. No more than the bilge pump not working well. And that duly I attended to as faithfully as any man in this world could possibly do.

MF 148

Within depositions of –

Geddes

Sinclair

Dewar

Lennon

Were taken and sworn before us on 2 January 1877 – Busselton

Sworn 2 January 1877

MF 149, 150, 151

Busselton 2nd January 1877

Having accordance to the provisions of the 28th Vic No 2 formally investigated in certain charges preferred against Joseph Horrigan, 2nd Engineer of the S.S. Georgette at the time of her loss on 1 December 1876.

For that on 30 November 1876 when Joseph Horrigan being then and there the 2nd Engineer of the S.S. Georgette did neglect his duty, in not having taken further measures to ascertain the cause of the increase of water in the ship during the front watch on the evening of November 30th – of which increase he was evidently aware.

We find that Joseph Horrigan, 2nd Engineer was aware of there being more water than usual in the bilges of the Georgette when he went on watch at 8pm November 30th and that such increase had taken place since his previous watch.

That he was well aware that the water kept increasing.

That the defective working of the bilge pump and the extra quantity of water on the heated bearings , beyond that from ordinary sources of water in the ship.

That had any attempt been made to ascertain which way the water was flowing through the lock in the bulk head between the engine room and fore hold, proof would have been obtained in which compartment the leak was, and means would thereby have been afforded for determining whether it was advisable to keep that lock open

That Joseph Horrigan did not during his watch report to the officer or the watch on deck the continuous increase of water on the ship.

That the engine was not stopped and no measures taken whatever during the first watch to ascertain the cause of the increase of the water in the ship.

Whereupon we find the Second Engineer Joseph Horrigan guilty of neglect of duty in not having taken any measures to ascertain the cause of the increase of water in the ship during the first watch of November 30.

And thereupon the sentence of the court is that the certificate of the Second Engineer Joseph Horrigan be suspended for 12 months.

W. Pearce Clifton

Acting Superintendent of Customs, Vasse

John Brockman, JP

Concurred by Geo. Forsythe Harbour Master and William Eldridge, Engineer

MF 152, 153

Depositions on oath taken at Busselton this 1st day of January 1877 before W Pearce Clifton Acting Superintendent of Customs at the Vasse, assisted by John Brockman JP – and GA Forsyth, Harbor Master and William Eldridge, Marine Engineer and Nautical Assessor at a Formal Inquiry under 28 Vic No 2 unto a certain charge preferred against William Dundee, Chief Mate of the S.S. Georgette at the time of her loss on 1 December 1876.

For that on 1 December 1876 William Dundee, being then and there the First Officer of the S.S. Georgette, did disobey the orders of his commanding officer, Captain Godfrey, in not entering the lifeboat when ordered to do so – loss of life resulting from such disobedience.

John Godfrey being sworn saith:

I was the Master of the Georgette at the time of her loss on December 1. I remember the evening and night of November 30th. During the xxx xxxx the ship to my knowledge was not leaking – I went on deck at 2.30 and did not then know of the leak. At 4.25 I saw the water was over the stoke hole plates and I considered the ship had sprung a leak – after that it continued to increase very rapidly till the fires were extinguished about 5.30 to 5.45. I determined to get her to the shore.xxxx xxxx as a precaution – we were then about 20 miles off the land- the Leeuwin Sand Patch bearing N.E. by N.E. ...about 4.30. I cut the square sails on the ship and after that ordered the 2nd officer to get the boats swung out to the xxxxs. At 4 the baling commenced and all hands were kept at it. About 8pm the water having increased very rapidly - and the ship in my opinion being in a very dangerous state – about 12 to 14 miles off the land – I ordered the life boat to be lowered. Before the boat was lowered, I had myself put the helm hard up and made the starboard side, on which the boat was lowered, the lee side as well as I could. The boat was lowered with some difficulty – oars flying over...

MF 154-155

Xxxbeing placed in skids against the ships' side – to my knowledge the boat was not injured on lowering – A McLeod and another man were lowered and she was kept towing astern for about half an hour. The ship at that time was going down into the water very rapidly – I thought it advisable to put the women and children in lifeboats to tow astern – she was then hauled down the portside - and 12 women and some children in arms were put into her and I ordered her to be slacked astern

again. About 15 to 20 minutes the ship sinking very rapidly I ordered the boat to be hauled up again – I put two more women into the boat and ordered Mr Dundee the first mate to get into her – he did so. I told him the ship was going down very fast and that I would tow the boat until the ship went down, and told him to be cautious to keep clear of the ship when she was going down. The boat was xxxing in a great deal of water that was washing between her and the ship's side. I shouted out to A McLeod who was steering her with an oar to shear her off from the ship's side. W. Dundee was in the bow of the boat and he was holding on to the painter, the other end of which was fastened to the Devils.

When I saw the boat clear of the ship's side I I shouted out to the mate to slack her....he did not do so to my knowledge – I shouted out two other times, 'slack the boat astern otherwise you will drown the people in the boat...' He did not slack her astern – she then sheared into the ship and gave a loud crack alongside – most of the women made a scramble toward the ship, and capsized the boat. A great many of the women and children were thrown into the water and some of them got out and into the ship.

MF 155-157

...some of those thrown in the water by the capsizing of the boat were drowned and disappeared.

When I ordered the mate to slack astern I don't think he made any answer. He had the xight of the painter in his hand and didn't obey the command when I ordered him to slack astern. He could have slacked astern immediately I made the order. If the order had been immediately obeyed I believe she would have at the time dropt clear of the ship in the water.

The boat xxx sheared hard to the ship's side and was a fathom to a fathom and a half xxxx the ship when I gave the order for Dundee to slack astern. The ship was going through the water about two knots and the boat was taking some water over the bows. It was safer to drop her astern to be clear of the wash of the ship's side.

It was a critical action to drop the boat astern under the circumstances but if the order had been obeyed I believe she would have dropped astern without touching the ship.

There was some four or five fathoms of clear painter in the boat. The mate was not cool and collected. At four o'clock I had occasion to tell the mate to stop on deck and not go below – to keep his watch and not turn in – he had been only two days on the ship, having joined at Fremantle.

The second officer asked me to let him take charge of the boat – after the accident I suggested he jump overboard – he so did as did Noonan the cabin boy without any orders at all.

Cross exam?

Cross exam by W Dundee

You were just going down to your berth when I told you to keep all your watch on the deck.

You came up shortly afterwards. I told you to get buckets and bail water out of the Lazarette.

You were in the Lazarette when I told you to do in to the lifeboat – you came xxx that time –

You didn't go into the boat at once – you went and got your Cxxx of Tobacco

I swear that the 2nd mate was standing alongside me when you got into the Boat.

I cannot say whether the boat would have broken her sheer, if she had been properly steered, but I will not say that she was improperly steered.

I believe the cause of the boat's capsizing after she struck the ship's side was the women and children getting on one side of her.

I do not think she would have capsized if they had kept their seats.

They all seemed frightened when the boat struck the ship – the boat dropt astern after she capsized

She would not have dropt astern if the painter was fast to the boat xxxx carried away

You never disobeyed my order when you were aboard the ship

You were not to my knowledge under the influence of liquor

I cannot be certain if my previous statement is correct, that there were four or five fathoms of Painter clear in the boat

J Godfrey

MF 160-161

John Dewar being sworn saith:

I was second officer on the Georgette at the time of her loss. I by the Captain's orders lowered the lifeboat on 1 December. I was present when the women and children were put in and when W Dundee was ordered in - after he was in the boat he was standing in the bow of the boat – I don't know whether he had the painter in his hand – I heard the Captain shout out to the chief mate to slack her, the boat, astern. The mate was about 3 or 4 fathoms distant when the Captain gave the order. It was given in a loud tone of voice. I cannot remember if he gave the order more than once – the word were 'slack the boat astern' – it was said quite loud enough for a person within the boat to hear. The boat was not slacked astern- and she sheared alongside the ship and was stove – the people in the boat reached to the side of her and she turned over – the boat was about 1 ½ fathom off the ship when the order was given. If the Captain's order had been immediately obeyed the boat would have dropt astern I think – previous to this, I had offered to go into the boat. The only reason I had for offering to go in the boat was because the mate was a long time a-coming.

Xexam by W. Dundee

If the boat had been properly steered I don't think she would have come into the ship's side.

Archibald McLeod was steering the boat.

If the passengers had kept their seats I don't think the boat would have capsized at all.

She capsized towards the ship.

J. Dewar

MF 158-159

MF161-163

1 ½ fathom off the ship when the order was given. If the Captain's order had immediately been obeyed the boat would have dxxxx xxxxx I think....Previous to this I had agreed to go into the boat. The only reason I had for offering to go in the boat, was the mate was a long time in coming.

W. Dundee:

If the ship had been properly steered, I don't think it would have come up against the ship's side.

Archibald McLeod was steering the boat. If the passengers had kept their seats I do not think the boat would have capsized.

She charged towards the ship.

Signed John Dewar

Archibald McLeod having been sworn, saith

I am Archibald McLeod in Georgette at time of her loss. I joined at Bunbury 10 days before –

I was in lifeboat when she was lowered 1 December. Ian Heard AB was also in her. I took the stern oar and was when at the time of the accident. I never observed the mate, W Dundee in the boat at all. I had enough to do in steering the boat I did not see W. Dundee get into her. I heard the order given to slack the Pinnacle or slack the boat but cannot be sure that was the Captain that gave the order. The order was given, the Captain was standing at the Gangway near the main rigging and would have been close to me when the boat sheared in toward the ship. The pxxxainter was slacked from the ship but I cannot say whether she was slacked from the boat. As soon as the order was given the painter was slacked from the ship or slacked away from the painter I cannot say which.

She did not drop astern as soon as the order was given. She would not have been dropped immediately if the order to block her immediately had been obeyed. She did not take anchor towards the ship when the order was given. The painter was perfectly slack when the boat took the shear towards the ship. She was shearing toward the ship when the order was given to slack away

164-165

Complaint? By Bill Dundee

...to slack away.

The Boat was not slacked within two or three fathoms before she touched the ship. There were about 10 in the stern of the boat when the order was given to slack astern.

When the boat struck the ship she filled with water and would have capsized even if the women had kept their seats. It was not the moving of the women that capsized her. She capsized from the ship.

Archibald McLeod

Court adjourned at 6.30 still tomorrow at 10am. 1.1.77

17 Jan 1877

Caroline Hale being sworn saith

I was a cabin passenger on the Georgette at the time of her loss on 1 December 1876.

Some time during the morning of the 1st December 1876 when the Georgette was supposed to be in a sinking state the life boat was got out and several women and children were put into her – After a short time the boat was hauled up a second time on the left hand (port) side of the ship. I was in the boat when it was hauled up Mrs Welch and Mrs Simpson were

I knew Mr Dundee the first officer of the ship – I did not see him go into the boat, nor did I see him at any time – I heard orders given – I suppose it was from the captain. The order was ‘let go the painter’ That was given to someone in the boat – he said it twice. Some...

MF 166-167

Some one with the ‘Bombardment’ – I do not know who it was around – ‘I cannot we are in a xxxo’ – by ‘xxxo’ I suppose he meant it was in consequence of four of us being jammed up into the bows. I cannot say whether he slacked the painter. The painter was not foul of any of us our our legs. I cannot say whether it was let go. I saw Hearn within the bow of the boat, xxx of Dundee...when I got into the boat and sat down on the seat he water was up to my knees. When the boat capsized she turned over away from the ship. I clambered up the side of the ship. The boat capsized where we got in, the very same part of the ship. The boat was exactly at the same place when xxx got in. The boat had not drifted further astern than when they got in when the Captain’s orders were given.

Signed Caroline Hale

William Dundee in defence saith

Mr Dundee at his request wishes to make the following statement:

Nothing was done willfully on oboard of the ship at the time of the accident. I was not very well acquainted with the ship at the time having been on only two or three days on board. When I was called to go into the boat, James Hearn had the painter in his hand. I found the painter had turned aroundxxxxxx (could be important) of the Thx xxx half xxxx xxxx – it was sent xxx the xxx xxx in the bow of the boat whole...

167-168

There was no painter belonging to the boat. It was a spare piece of line they had found. There was about two feet of water in the boat when I got into her. If the passengers had kept their seats at the time, she got damaged she would not have capsized. It was not two minutes from when I got into the boat that the accident occurred.

169-171

John Maloney on oath saith

I was passenger on the Georgette and recall the morning of 1 December 1876. I was close by the after deck pump when the order was given to let go the painter. I saw two of the passengers go and let to a rope from the side of the ship –cannot say whether it was the painter of the boat. I fancied the voice was the captain but I cannot be sure.

By the court

I don't know what a painter is

Depositions

Godfrey, McLeod, Hale, Dewar, Maloney

Busselton 2nd January 1877

In accordance with the provisions of 28 Victoria No. 2 formally investigated and certain charges preferred against William Dundee, first officer of the S.S. Georgette, did disobey the orders of his Commanding Officer, John Godfrey in not veering the life boat astern when ordered to do so, loss of life resulting from such disobedience.

We find that the morning of the 1 December 1876 the Georgette being supposed to be in a sinking state, the life boat was lowered and 12 women and children placed in her.

That being dropt astern, she was shortly after hauled up along the side again two more women put into her and William Dundee Chief Officer

MF 172-173

Findings – guilty of disobedience but not willful, rather incompetence.

